IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 203
(CAA)-56/ND/2022

IN THE MATTER OF:
Prem Industries India Ltd. ... Applicant/Petitioner

Under Section: 230-232

Order delivered on 05.01.2024

CORAM:
SH. ASHOK KUMAR BHARDWAJ
HON'BLE MEMBER (J)

SH. SUBRATA KUMAR DASH
HON'BLE MEMBER (T)

PRESENT:

For the IT Dept.	**:**	Mr. Parth Semwal Standing Counsel with Adv Utkarsh
For the OL	**:**	Adv. Hemlata Rawat and Rahul Bhatt Advs
For the RD	**:**	Adv. Shankari Mishra

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

Ms. Shankari Mishra, Ld. Counsel appearing for the RD, submitted that the observation made in para 10 at page No. 6 of the report of RD are with reference to the Transferor Company qua which Allahabad Bench of this Tribunal has already passed the order, approving the scheme of amalgamation. The Petitioner is directed to furnish the factual details in the standard check list/evolved performa within one week. Ld. Counsel for the Petitioner submitted that he would not seek the benefit of in carrying forward losses or any other advantage regarding the common revenue including the Income-Tax as a consequence.

Arguments heard. Order reserved.

Sd/-
(SUBRATA KUMAR DASH)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)